

July 13, 2026 Truckee Probate Tentative Rulings

1. PR0000159 In Re Brookman, Audrey Joy Lewis

Appearances required for hearing on the second accounting. Specifically, the Court wishes to hear from Petitioner as to the objections raised by Ms. Lewis, former guardian of the estate.

2. PR0000464 In the Matter of Amber Ann Walker

No appearance required. Guardianship remains necessary, convenient and in the best interests of the minor. The Court has reviewed the GC 251 Annual Confidential Status Report provided by the guardian. The next annual review hearing is set for Monday, July 12, 2027 at 1:30 p.m. in Dept. A. An updated GC 251 form shall be filed by the guardian thirty (30) days prior to the review hearing. Guardian is advised to check the Court's tentative rulings the Friday afternoon before the court date to see if appearance will be required.

3. PR0000914 In Re the Matter of the James and Nina Trust – James William Ness v. Nina Dedeker, et al.

Respondents', Nina Dedeker and Jeffrey Carl Helm's, unopposed motion to set aside default is GRANTED pursuant to CCP section 473(b).

Code of Civil Procedure section 473(b) provides in pertinent part:

"The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken....[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment.... The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties."

Here, Respondents have sought relief promptly after entry of default and well within six (6) months of its entry. In addition, the Declaration of attorney for Respondents, J. Kirk Boyd, provides ample basis for the Court's finding of surprise by counsel which mandates set aside under CCP section 473(b). In addition, Mr. Boyd's declaration contains Respondents' proffered responsive pleading as required under the statute. CCP 473(b). Finally, the Court notes Petitioner has filed no opposition to the motion. While the lack of opposition does not alter the mandate of set aside upon a finding of attorney mistake, inadvertence, surprise, or excusable

neglect, it does pertain to the mandate of granting opposing counsel reasonable attorney's fees and costs. Without an opposition or, at a minimum, a declaration by opposing counsel evidencing reasonable fees and costs incurred in obtaining the default judgment, the Court has no ability to determine what, if any, amount should be ordered. Accordingly, the Court order zero compensatory legal fees and costs be paid to Petitioner in relation to the granting of this motion.

Respondents' responsive pleading shall be filed no later than ten (10) days from entry of this order.

4. PR0000917 In Re the Matter of Delio K. Estevez

Appearances required by the guardians of the estate. Despite continuances and the Court's continuing the date for hearing on the first accounting, guardians have failed to file a first accounting and proposed order. Guardians are ordered to appear and show cause as to why sanctions should not issue for failure to file the first accounting which could include a monetary sanction and/or the Court replacing the current guardians with a Court appointed fiduciary.

5. PR0001029 In Re the Matter of Gregory Alan Tarter

No appearance required. On the Court's own motion, the matter is continued to July 27, 2026 at 1:30 p.m. in Dept. A. The Court is not in receipt of proof of publication as to the Amended Petition.

6. TP17-6592 In Re the Matter of Walker Michael Lindsay

No appearances required. The Petition for additional co-conservator of the limited conservatorship is granted. The addition of conservatee's brother as a third co-conservator and continued conservatorship remains necessary and appropriate. The investigation report fee is waived. Updated/Amended Letters shall issue. The next review hearing remains set for April 10, 2028 at 1:30 p.m. in Dept. A.